



CLYPTUS - Employee Code of Conduct Policy

Core HR Policy | Clyptus Software Solutions Pvt. Ltd.

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Clyptus Software Solutions Pvt. Ltd.

Core HR Policy

Employee
Code-of-Conduct Policy

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Revision History

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Table Of Contents

Table Of Contents	4
• Objective	5
• Scope and Applicability	5
• Policy/Process	5
4.1. National Interest	5
4.2. Financial Reporting and Records	6
4.3. Competition	6
4.4. Gifts and Donations	6
4.5. Government Agencies	7
4.6. Political Non-alignment	7
4.7. Health, Safety and Environment	7
4.8. Quality of Products and Services	7
4.9. Corporate Citizenship	7
4.10. Public Representation of the Company	7
4.11. Corporate Policies	8
4.12. Shareholders	8
4.13. Ethical Conduct	8
4.14. Regulatory Compliance	8
4.15. Concurrent Employment	8
4.16. Conflict of Interest	8
4.17. Securities Transactions and Confidential Information	10
4.18. Confidentiality on Salary and Compensation	10
4.19. Protecting Company Assets	11
4.20. Citizenship	11
4.21. Integrity of Data Furnished	11
4.22. Reporting Concerns	11
• Special Circumstance and Exception	11
• Non-compliance and Consequence	11
• Declaration	13
•	

- **Objective**

Clyptus Software Solutions Pvt. Ltd. recognises the need to establish a Code of Conduct policy for its employees and associates in order to define the way business relationships, official dealings, social behaviour and comradere needs to be maintained within and outside of office premises.

- **Scope and Applicability**

This policy covers all employees across levels and hierarchy in the organization.

All employees:

1. Permanent
2. Part-time
3. Contract
4. Temporary

Also the employees of :

- Partners
- Vendors

This policy is owned by Human Resources Department and reachable @ +91 77999 88139 and hr.india@clyptus.com

- **Policy/Process**

- **4.1. National Interest**

Clyptus Software Solutions Pvt. Ltd. shall be committed in all its actions to benefit the economic development of our country and shall not engage in any activity that would adversely affect such objective. It shall not undertake any project or activity to the detriment of the Nation's interests or those that will have any adverse impact on the social and cultural life patterns of its citizens. Clyptus Software Solutions Pvt. Ltd. shall conduct its business affairs in accordance with the economic development and foreign policies, objectives and priorities of the National or Local government and shall strive to make a positive contribution to the achievement of such goals at the international, national and regional level as appropriate.

4.2. Financial Reporting and Records

Clyptus Software Solutions Pvt. Ltd. shall prepare and maintain its accounts fairly and accurately in accordance with the accounting and financial reporting standards which represent the generally accepted guidelines, principles, standards, laws and regulations of our country.

Internal accounting and audit procedures shall fairly and accurately reflect all of the Company's business transactions and disposition of assets. All required information shall be accessible to company auditors and other authorized parties and government agencies. There shall be no willful omissions of any company transactions from the books and records, no advance income recognition and no hidden bank account and funds.

Any willful material misrepresentation of and/or misinformation on the financial accounts and reports shall be regarded as a violation of the Company's Code of Conduct policy, leading to inviting appropriate civil or criminal action under the relevant laws.

4.3. Competition

Clyptus Software Solutions Pvt. Ltd. shall fully strive for the establishment and support of a competitive open market economy in India and abroad and shall cooperate in the efforts to promote the progressive and judicious liberalization of trade and investment by those countries.

Specifically, Clyptus Software Solutions Pvt. Ltd. shall not engage in activities which generate or support the formation of monopolies, cartels and similar unfair trade practices.

Clyptus Software Solutions Pvt. Ltd. shall market its products and services on its own merits and shall not make unfair and misleading statements about competitors' products and services. Any collection of competitive information shall be made only in the normal course of business and shall be obtained only through legally permitted sources and means.

4.4. Gifts and Donations

Clyptus Software Solutions Pvt. Ltd. and its employees shall neither receive nor offer or make, directly or indirectly, any illegal payments, remuneration, gifts, donations or comparable benefits which are intended to or perceived to obtain business or

uncompetitive favors for the conduct of its business. However, Clyptus Software Solutions Pvt. Ltd. and its employees may accept and offer nominal non-cash gifts, the value of which shall not exceed Rs. 10,000/- per annum, which are customarily given and are of commemorative nature for special events.

4.5. Government Agencies

Clyptus Software Solutions Pvt. Ltd. and its employees shall not offer or give any company funds or property as donation to any government agencies or their representatives, directly or through intermediaries, in order to obtain any favorable performance of official duties.

4.6. Political Non-alignment

Clyptus Software Solutions Pvt. Ltd. shall be committed to and support a functioning democratic constitution and system with a transparent and fair electoral system in India. Clyptus Software Solutions Pvt. Ltd. shall not support directly or indirectly any specific political party or candidate for political office. The Company shall not offer or give any company funds or property as donations, directly or indirectly, to any specific political party, candidate or campaign.

4.7. Health, Safety and Environment

Clyptus Software Solutions Pvt. Ltd. shall strive to provide a safe and healthy working environment and comply, in the conduct of its business affairs, with all regulations regarding the preservation of the environment of the territory it operates in.

4.8. Quality of Products and Services

Clyptus Software Solutions Pvt. Ltd. shall be committed to deliver services of the highest quality standards backed by efficient customer relationship management consistent with the requirements of the customers to ensure their total satisfaction.

4.9. Corporate Citizenship

Clyptus Software Solutions Pvt. Ltd. shall be committed to be a good corporate citizen not only in compliance with all relevant laws and regulations but also by actively assisting in the improvement of the quality of life of the people in the communities in which it operates.

4.10. Public Representation of the Company

Clyptus Software Solutions Pvt. Ltd. honors the information requirements of the public and its stakeholders. In all its public appearance with respect to disclosing company and business information to public constituencies such as the media, the financial community, employees and shareholders, only specifically authorized director/s and employees shall represent Clyptus Software Solutions Pvt. Ltd.. It will be the sole responsibility of these authorized representatives to disclose information of the Company.

4.11. Corporate Policies

Clyptus Software Solutions Pvt. Ltd. shall recommend to its Board of Directors the adoption of policies and guidelines periodically formulated.

4.12. Shareholders

Clyptus Software Solutions Pvt. Ltd. shall be committed to enhance shareholder value and comply with all regulations and laws that govern shareholders' rights. The Board of Directors of Clyptus Software Solutions Pvt. Ltd. shall duly and fairly inform its shareholders about all relevant aspects of the Company's business and disclose such information in accordance with the respective regulations and agreements.

4.13. Ethical Conduct

Every employee of Clyptus Software Solutions Pvt. Ltd., which shall include head of the company, shall deal on behalf of the Company with professionalism, honesty, integrity as well as high moral and ethical standards. Such conduct shall be fair and transparent and be perceived to be as such by third parties.

Every employee shall be responsible for the implementation of and compliance with the Code in his professional environment. Failure to adhere to the Code of conduct could attract the most severe consequences including termination of employment.

4.14. Regulatory Compliance

Every employee of Clyptus Software Solutions Pvt. Ltd., shall in his business conduct, comply with all applicable laws and regulations, both in letter and in spirit, in all the territories in which it operates. If the ethical and professional standards set out in the applicable laws and regulations are below that of the Code, then the standards of the Code shall prevail.

4.15. Concurrent Employment

An employee of Clyptus Software Solutions Pvt. Ltd. shall not, without the prior approval of the head of the company, accept employment or a position of responsibility (such as a consultant or a director) with any other company, nor provide "free-lance" services to anyone. In the case of the head of the company such prior approval must be obtained from the Board of Directors of the company.

4.16. Conflict of Interest

An employee of Clyptus Software Solutions Pvt. Ltd. shall not engage in any business, relationship or activity, which might detrimentally conflict with the interest of Clyptus Software Solutions Pvt. Ltd.. A conflict of interest, actual or potential, may arise where directly or indirectly: (a) an employee of Clyptus Software Solutions Pvt. Ltd. engages in a business relationship or activity with

anyone who is party to a transaction with his Company, (b) an employee is in a position to derive a personal benefit or a benefit to any of his relatives by making or influencing decisions relating to any transaction, and (c) an independent judgment of the Company's best interest cannot be exercised.

The main areas of such actual or potential conflicts of interest would include the following

- Financial interest of an employee of Clyptus Software Solutions Pvt. Ltd. or his relatives including the holding of an investment in the subscribed share capital of any company or a share in any firm which is an actual or potential competitor, supplier, customer, distributor, joint venture or other alliance partner of the Clyptus Software Solutions Pvt. Ltd..
- An employee of Clyptus Software Solutions Pvt. Ltd. conducting business on behalf of the Company or being in a position to influence a decision with regard to Company's business with a supplier or customer of which his relative is a principal, officer or representative, resulting in a benefit to him or his relative.
- Award of benefits such as increase in salary or other remuneration, posting, promotion or recruitment of a relative of an employee of Clyptus Software Solutions Pvt. Ltd. where such an individual is in a position to influence the decision with regard to such benefits.
- Acceptance of gifts, donations, hospitality and/or entertainment beyond the customary level from existing or potential suppliers, customers or other third parties which have business dealings with the Company.

Notwithstanding that such or other instances of conflict of interest exist due to any historical reasons, adequate and full disclosure by the interested employees should be made to the company's management. It is also incumbent upon every employee to make a full disclosure of any interest which the employee or the employee's immediate family, which would include parents, spouse and children, may have in a company or firm which is a supplier, customer, distributor of or has other business dealings with his Company.

Every employee who is required to make a disclosure as mentioned above shall do so, in writing, to his immediate superior who shall forward the information along with his comments to the person designated for this purpose by the head of the company who in turn will place it before the head of the company and/or the Board of Directors and upon a decision being taken in the matter, the employee concerned will be required to take necessary action as advised to resolve / avoid the conflict.

If an employee fails to make a disclosure as required herein and the management of its own accord becomes aware of an instance of conflict of interest that ought to have been disclosed by the employee, the management would take a serious view of the matter and consider suitable disciplinary action against the employee, including termination of employment and recovery of any damages.

4.17. Securities Transactions and Confidential Information

An employee of Clyptus Software Solutions Pvt. Ltd. and his immediate family shall not derive any benefit or assist others to derive any benefit from the access to and possession of information about the Company, which is not in the public domain and thus constitutes insider information.

An employee of Clyptus Software Solutions Pvt. Ltd. shall not use or proliferate information which is not available to the investing public and which therefore constitutes insider information for making or giving advice on investment decisions on the securities of Clyptus Software Solutions Pvt. Ltd. on which such insider information has been obtained.

Such insider information might include the following

1. Acquisition and divestiture of businesses or business units.
2. Financial information such as profits, earnings and dividends.
3. Announcement of new product introductions or developments.
4. Asset evaluations.
5. Investment decisions/plan
6. Restructuring plans
7. Major supply and delivery agreement
8. Raising finances.

4.18. Confidentiality on Salary and Compensation

Employees of Clyptus Software Solutions Pvt. Ltd. shall not disclose their compensation package to anyone nor shall be permitted to discuss the compensation of any other employees to others.

Failure to adhere to the Code could attract the most severe consequences including termination of employment.

4.19. Protecting Company Assets

The assets of Clyptus Software Solutions Pvt. Ltd. should not be misused but employed for the purpose of conducting the business for which they are duly authorized. These include tangible assets such as systems, facilities, materials, and resources as well as intangible assets such as proprietary information, relationships with customers and suppliers, etc.

4.20. Citizenship

An employee of Clyptus Software Solutions Pvt. Ltd. shall in his private life be free to pursue an active role in civic or political affairs as long as it does not adversely affect the business or interests of the Company or the Group.

4.21. Integrity of Data Furnished

Every employee of Clyptus Software Solutions Pvt. Ltd. shall ensure at all times, the integrity of data or information furnished by him to the Company.

Furnishing wrong information could attract the most severe consequences including termination of employment.

4.22. Reporting Concerns

Every employee of Clyptus Software Solutions Pvt. Ltd. shall promptly report to the management any actual or possible violation of the Code or an event he becomes aware of that could affect the business or reputation of Clyptus Software Solutions Pvt. Ltd..

- **Special Circumstance and Exception**
- **Non-compliance and Consequence**

Please find below the reasons which can lead to Termination of Employment. This list is Non-Exhaustive

- Gross misconduct or behavior which may result in disrepute to the employer;
 - Misuse of office premises
 - Misuse of assets made available for work

- Not disclosing to the management romantic relationship with a fellow staff member
- Willful insubordination or disobedience, whether alone or in conjunction with another or others, or of any lawful or reasonable order of a superior. The order of the superior should normally be in writing.
- Going on illegal strike either singly or with other workers without giving 14 days previous notice.
- Abetment of or attempt at abetment of any of the above acts of misconduct.
- Threatening, abusing or assaulting any superior or co-worker
- Drunkenness, fighting or riotous, disorderly or indecent behaviours while on duty at the place of work.
- Causing wilful damage to work in progress or to property of the employer.
- Conviction in any Court of Law for any criminal offence involving moral turpitude
- Betting, Gambling and Money lending business inside office premises
- Preaching of or inciting to violence.
- Refusal to accepted any charge-sheet or order or notice communicated in writing.
- Any material or persistent breach of the terms contained in the contract;
 - Disclosing to any unauthorized person of any confidential information in regard to the working or process of the establishment which may come into the possession of the workman in the course of his work or even after exiting employment
 - Failure of Background check of Employment, Education qualifications
 - Habitual late attendance and habitual absence without leave or without sufficient cause.

- Continuous absence without information and without satisfactory cause for more than two days as per the policy of CLYPTUS SOFTWARE SOLUTIONS PVT. LTD.
- Habitual neglect of work.
- Habitual indiscipline.
- Any other reasons depending on the position occupied by the employee
- Failure to report any of the reasons mentioned above with respect to his / her reporting team members

- **Declaration**

Code of conduct declaration

I, **Clyptus Employee**, have read, understand and agree to abide by the Code of Conduct Policy of Clyptus Software Solutions Pvt. Ltd. and I understand that such adherence is a Condition of my employment. I understand that a violation of the Code of Conduct may be grounds for termination as an employee, immediate Dismissal for just cause without notice or pay in lieu of notice, including recovery of money for damages.

Signature :

Date :